

EXHIBIT 4

SFPD Report

Case No.: CGC-25-631801

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: SFPD



**THE DOLAN LAW FIRM
1438 MARKET STREET
SAN FRANCISCO, CA 94102
ATTN: CHRISTOPHER B. DOLAN**

**CASE NAME: FRANCISCUS DYLAN ROSARIO v SUBHI ABDELHALIM INDIVIDUALLY, AND
 DBA SONOMA LIQUOR**

FILE NO: 1004-09-1054

COMPEX LEGAL SERVICES
325 MAPLE AVENUE, TORRANCE, CALIFORNIA, 90503
855-279-2396

RECORD REQUEST FORM

Compex Order: CA1147102

CHRISTOPHER B. DOLAN
THE DOLAN LAW FIRM
1438 MARKET STREET
SAN FRANCISCO, CA 94102

01/31/2024

RE: FRANCISCUS DYLAN ROSARIO V. SUBHI ABDELHALIM INDIVIDUALLY, AND DBA SONOMA LIQUOR
Case No.: CGC-21-594102
Record Subject: FRANCISCUS DYLAN ROSARIO
Records requested by: PHILLIPS, SPALLAS & ANGSTADT LLP

DEAR CHRISTOPHER B. DOLAN:

Compex Legal Services has been requested by the firm named above to obtain records from the locations listed below.

If you require copies of any of these records, please indicate by checking the box next to the appropriate location(s) and sign and return the form to Compex Legal Services. If no boxes are checked, we will produce copies for all locations.

Please note:

Checking the box next to a location indicates that you would like to receive a copy of the records obtained by Compex Legal Services.

Should you wish to order any additional services such as summaries or record reorganization, please indicate in the provided fields below. If you check "Films" and/or "Other", these occasionally include copies of original items such as photos, blueprints, video, or audio tapes, so this order must be submitted within (2) business days of receipt of this notice to assure proper delivery.

Please select preferred mode of delivery:

☐ **Electronic** ☐ **CD** *If nothing is checked, records will be posted electronically to our web portal

Records Films Other
 (If requested)

☐ ☐ ☐ CA1147102-021 - SAN FRANCISCO POLICE DEPARTMENT (LEGAL DIVISION)

☐ Furthermore, on behalf of the consumer, and in accordance with CCP 2020(d)(4), I stipulate to an early release of all documents and items listed above, from all locations listed herein, waiving all time for statutory holds. The documents and other items may be copied and released prior to the deposition date listed on the subpoena(s).

Medical Record Summarization

Check only one:

- ☐ Full Summary includes:
1. Chronological Record Reorganization with Visit Index
 2. Medical Records Summary
 3. Billing Summary
- ☐ Medical Summary includes:
1. Chronological Record Reorganization with Visit Index
 2. Medical Records Summary
- ☐ Basic Reorganization includes:
1. Chronological Record Reorganization with Visit Index

Additional Summary Instructions

All locations will be summarized, unless otherwise specified

- ☐ Medical locations only
☐ Billing locations only
☐ Medical and Billing locations
☐ OCR records
☐ If additional records are received after a summary is produced, the supplemental summary can be merged with the original for \$25 per merge.

Summary Delivery Instructions

- ☐ Electronic copy delivered to my Compex account
☐ CD

If your firm has an account with Compex Legal Services, normal billing will apply. If you represent an insurance carrier and prefer that we bill them directly, please provide the following information:

Carrier _____ Adjuster _____
Address _____ Phone _____
City, St _____ Zip _____
Claim _____ Insured _____

Your signature below confirms that you are ordering these items and agree to the terms and conditions (attached)

Authorized Signature _____ Date _____
(Required)
Print Name _____ Title _____
E-mail _____ Phone _____ Fax _____
(Mandatory field if Electronic records are being requested)

COMPEX STANDARD TERMS AND CONDITIONS

The following Standard Terms and Conditions are an integral part of your contract with COMPEX. These terms are in addition to the terms provided to you as part of your sales proposal. If any terms of any sales proposal provided to you by COMPEX conflicts with any term stated here, then the terms stated herein shall control except to the extent that the proposal specifically states that it takes precedence over these Standard Terms and Conditions.

Instructions. You are responsible for clearly instructing COMPEX as to exactly what work COMPEX is to perform for you. This is the only way COMPEX can ensure that its production staff understands your needs and can deliver a high-quality work product. Your designated COMPEX representative will then provide you with a detailed, clear and precise written description of the work to be performed by COMPEX. However, if they fail to do so, it is solely your responsibility to demand one from them. In the alternative, you may choose to write and deliver such a written description to COMPEX before COMPEX begins work on your project. You agree to be responsible for any ambiguity in the instruction that COMPEX follows in completing your work and for reaching out to secure log in credentials to our web portal in order to access records delivered electronically if that is your requested delivery mode.

Change Orders. If after COMPEX begins work on your project, you decide you want the work done differently than as specified in the original instructions then you shall be solely responsible for providing revised instructions to COMPEX. If COMPEX incurs costs in conjunction with following any revised instructions, whether through re-work, abandoned work, or additional work, then you shall pay an additional charge consistent with the new work and with the original contract pricing. Your obligations regarding written instructions, as described in the instructions paragraph above, shall apply to all change orders.

Production of Records. COMPEX cannot guarantee the custodian of records will make the records available. If the records are made available, COMPEX will use its best efforts to assure their production within 5 working days. If the records have already been produced, COMPEX may require as long as 10 working days to retrieve and produce a duplicate set from its archives. You will receive an exact copy of the response provided by the location, even if a Certificate of No Records is provided.

Payment. Unless otherwise agreed in writing, the fees described will apply to each location requested. You will pay COMPEX \$58.00 plus \$17.50 shipping/handling for each record location ordered. In addition, for each location ordered, you will pay \$0.40 for each and every page we obtain and reproduce (paper, CD and/or electronic) and \$12.50 for each CD of material or document ordered. These charges apply regardless of the number of pages reproduced, and to locations where there are no records. Payment is due for goods and services no later than ten days following the invoice date. COMPEX may, at its discretion, require prepayment up front, or on delivery. If your order is received later than 2 weeks from the original order date, a \$15.00 late processing fee will be applied to each location that is produced.

Pricing and Payment terms for original items duplicated. Unless otherwise agreed in writing, you will pay COMPEX \$58.00 plus \$17.50 shipping/handling for each and every record location listed above. In addition, you will pay \$15.00 for each x-ray, CT scan, MRI; \$2.00 for each photograph; \$12.50 per CD; \$2.00 per square foot for blueprints we obtain and reproduce. These charges apply regardless of the number of items reproduced, and for locations where there are no records. Payment is due for goods and services no later than ten days following invoice date. COMPEX may, at its own discretion, require payment up front, or on delivery.

Late Charges. The price agreed by COMPEX for your work was agreed only with the understanding that it would be paid within the time allowed under paragraph 3 above. Thereafter, beginning on the 30th day following the invoice date, a 1.5% per calendar month price premium applies and the total amount due shall be compounded monthly at this rate.

Arbitration. You and COMPEX agree that any controversy or claim arising out of or related to this contract, or the breach thereof, shall be decided by binding arbitration that is subject to the Federal Arbitration Act and that shall be administered by the American Arbitration Association under its applicable rules (provided that, if, for any reason, the AAA is unable to administer the arbitration, JAMS shall do so). Any such arbitration must be brought exclusively in Los Angeles County, State of California. You and COMPEX each waive the right to proceed in court, the right to a jury trial, and the right to appeal. You agree that your claim shall be heard and decided individually. You shall have no right or authority to have any claims arbitrated on a class action basis (as a class member, class representative, or otherwise), nor shall your claim be joined with other claims.

Exclusion of Certain Types of Damages. You and COMPEX agree that, except as may be otherwise provided under applicable laws, neither party shall be liable to the other for any indirect, incidental, consequential, special, punitive, or exemplary damages.

Limitations of Liability. Your recovery on any claim shall be limited to the dollar value of this contract.

Attorney's Fees. In any dispute between you and COMPEX arising from your contract with COMPEX, the prevailing party shall be entitled to recover reasonable attorney's fees, reasonably incurred costs, and reasonably incurred expert fees, except to the extent prohibited by applicable law or the applicable arbitration rules.

Waiver. If, at any time, COMPEX's services do not conform to your expectations, you must notify COMPEX in writing within a reasonable time, not to exceed 30 days, stating precisely the nature of your complaint. Your failure for any reason whatsoever to provide such written notice shall constitute a waiver of any and all claims based on such non-conformity, and no evidence of such non-conformity shall be admissible in any legal proceeding unless first offered by COMPEX.

Disclaimer of Warranty. COMPEX disclaims all implied warranties including, without limitation, but not limited to, the implied warranties of merchantability and fitness for a particular purpose, and all express warranties except those explicitly made in these Standard Terms and Conditions. Certain state laws may not allow limitations on implied warranties. If these laws apply to you, some or all of the above disclaimers may not apply to you, and you might have additional rights.

Governing Law. This contract shall be governed and construed in accordance with the laws of the State of California, without regard to its conflicts of law provisions. You agree to waive any and all objections that you may have to California law as the governing law and to the sole and exclusive venue being Los Angeles County, California.

Miscellaneous. Fax and emailed signatures shall have the effect of original signatures. This contract may be executed in counter-parts. These Standard Terms and Conditions form an essential but not a complete statement of the contract between you and COMPEX.